

Chapter 4

ANIMALS*

Art. I.	In General, §§ 4-1—4-25
Art. II.	Dogs, §§ 4-26—4-35
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ARTICLE I. IN GENERAL

Sec. 4-1. Definitions.

[The following term, when used in this chapter, shall have the meaning ascribed to it herein, except where context clearly indicates a different meaning:]

Vaccination against rabies shall mean the inoculation of a dog or cat with a rabies vaccine licensed by the United States Department of Agriculture. Such vaccination shall be performed by a veterinarian duly licensed to practice veterinary medicine. (Ord. No. 362, 10-12-94)

Sec. 4-2. Rabies vaccination required.

Every dog and cat three (3) months of age and older shall be vaccinated against rabies in accordance with RSA 436 (Rabies Control Act). (Ord. No. 362, 10-12-94)

Secs. 4-3—4-25. Reserved.

***Cross references**—Hunting, fishing and molesting wildlife prohibited in public parks and recreation areas, § 12-69; dogs, cats and other household pets restricted in public parks and recreation areas, § 12-73.

State law references—Animals, RSA 435:1 et seq.; rabies control, RSA 436:99 et seq.; dogs, RSA 466:1 et seq.; cruelty to animals, RSA 644:8; penalty for violation of certain offenses, RSA 466:31a.

ARTICLE II. DOGS*

Sec. 4-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

At large shall mean off the premises or property of the owner or responsible person, or not confined within a vehicle, and not under the control of the owner or any person.

Dog shall mean any canine animal, male or female, sexed or neutered.

Immediate control shall mean restraint by leash or by vocal command. A dog shall be deemed out of immediate control if the owner or custodian cannot restrain it from entering upon the property of another or from running uncontrolled on the public ways. Failure on the part of the owner or custodian to exercise control shall be deemed the permitting of a dog to go at large out of immediate control. The provisions of this article which apply to the owner of a dog shall apply equally to any person having custody or possession of a dog.

Notice of forfeiture shall mean a citation as may be issued by a duly authorized peace officer in lieu of a court summons and payable to the city clerk.

Nuisance dog shall mean any dog under any or all of the following or similar conditions:

- (1) Running at large;
- (2) Excreting or causing waste on any property other than its owner's;
- (3) Whose owner violates section 4-34 of this article II.

Own shall mean to keep, harbor, control or have custody of a dog on either a permanent or temporary basis. This term shall not apply to veterinarians or kennel operators temporarily responsible for maintaining on their premises dogs owned by others.

***Cross reference**—Dogs, cats and other household pets restricted in public parks and recreation areas, § 12-73.

Owner shall mean any person or persons, firm, association, partnership, LLC, corporation or other responsible person possessing, keeping, harboring or having custody of a dog. This term shall not apply to veterinarians or kennel operators temporarily responsible for maintaining on their premises dogs owned by others.

Presumption of lack of control. A nuisance created or injury to the person or property of another done by a dog shall create a presumption of lack of control. Such presumption may be rebutted by a preponderance of evidence showing that such actions complained of were caused by the enticement of another person. (Ord. No. 253, § 2, 9-11-85; Ord. No. 362, 10-12-94; Ord. No. 516, § 1, 8-11-2010)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 4-27. Dogs to be restrained.

The purpose of this article is to require that all dogs in the city be kept under the control of their owners or custodians at all times so that they will not injure persons, damage property or create a nuisance.

(Ord. No. 253, § 1, 9-11-85)

Cross reference—Nuisances generally, Ch. 11.

Sec. 4-28. Responsibility of dog owner.

(a) It shall be unlawful to permit any dog to run at large within the city; to this end, the owner or keeper of a dog shall keep the dog under immediate control or within an enclosure whenever the dog is not on the property of the owner or keeper.

(b) It shall be unlawful for any dog to be at large on any property owned by the City of Claremont, including those city-owned properties operated by the parks and recreation department unless such dog is under the control of the owner or responsible person.

(c) The provisions of this article II shall not apply to dogs owned or controlled by government law enforcement or to any disability assistance animal accompanying a disabled person and shall not apply to dogs actively participating in hunting, herding, supervised competition or exhibition, or training.

(Ord. No. 253, § 3, 9-11-85; Ord. No. 516, § 2, 8-11-2010)

Sec. 4-29. Procedure for handling dog going at large.

(a) Any police officer or other person designated and deputized by the chief of police for such purpose is authorized to capture and impound any dog found at large, in accordance with the procedures specified under section 4-30. This article shall not apply to hunting dogs while such dogs are under the supervision and control of the owner while hunting or being trained for hunting.

(b) Any person finding a dog going at large may capture and remove it to any private or other animal shelter that will take possession of it or he may hold the dog in his possession. He shall immediately notify the police department of his action, giving a description, license number, if any, and the name of the owner or custodian if known to him.

(c) If the person so complaining shall have the dog in his possession, the police department shall dispatch an officer to appear at the premises and take possession of that animal.
(Ord. No. 253, § 4, 9-11-85)

Sec. 4-30. Impoundment.

(a) Any dog found running at large shall be restrained or impounded by the dog officer, under the direction of the health officer or by any law enforcement officer. Any animal so impounded shall be confined in a suitable animal shelter. Impounded dogs not claimed by the owner or custodian within seven (7) days after notice to the owner or custodian, or stray dogs where the owner or custodian is unknown may be humanely disposed of by the dog officer or by the responsible authorities of the animal shelter. Impounded dogs not wearing a valid rabies vaccination tag shall be impounded for a period of not less than seven (7) days in accordance with RSA 436 (Rabies Control Act) before being returned to the owner or custodian or before disposal.

(b) Any licensed dog so impounded shall only be surrendered to the duly identified owner or custodian thereof upon the presentation to the owner of the shelter of a receipt issued by the

city as provided in (c) below and any unlicensed dog, upon presentation of such receipt and proof of licensing from the city clerk.

(c) The owner of any impounded dog shall be responsible to the city for the payment of all charges incurred in the impounding of any dog, including but not limited to payment for boarding of the dog, plus a fee which is on file in the city manager's office for the capture and transportation of such dog by any city agent. Such payment shall be made to the city treasurer when such office is open to the public and at such other times to the police officer on duty at the police station. If payment is made at the police station the police chief shall forthwith transmit the payment and a copy of the receipt to the city treasurer. The payment of capture and impounding charges shall in no way limit or otherwise effect penalties for such violation as provided by this article or RSA 466:1 et seq., for such violations.

(Ord. No. 253, § 5, 9-11-85; Ord. No. 362, 10-12-94)

Sec. 4-31. Animal shelter operation agent for the city.

The owner of any hospital or shelter whose services in retaining a dog are utilized in the carrying out of the provisions of this article is made an agent of the city for returning and disposing of such dogs and his actions in this regard are deemed to be for a governmental purpose.

(Ord. No. 253, § 6, 9-11-85)

Sec. 4-32. Issuance of complaints; penalties.

(a) It shall be the duty of the designated dog or animal control officer, health officer or any law enforcement officer to issue a complaint against the owner of a dog for a violation of any provision of this article II.

(b) Any person who violates any provision of this article II shall be guilty of a violation, together with the costs of such prosecution for each offense, unless subject to the civil forfeiture as set forth in subsection (c).

(c) Any owner of a dog that is found to be at large or a nuisance as defined herein shall be liable for a forfeiture of twenty-five dollars (\$25.00) for the first offense and one hundred dollars (\$100.00) for the second or subsequent offense committed within twelve (12) months of the first offense. All such forfeitures are to be paid to the city clerk within ninety-six (96) hours of the date and time notice is given by any authorized person that the owner is in violation of this article II. Failure to pay such forfeiture in a timely manner shall have the case disposed of in district court. Any owner who pays such forfeiture twice in any twelve-month period shall have any subsequent case disposed of in district court in lieu of any subsequent payment of civil forfeiture.

(Ord. No. 253, § 7, 9-11-85; Ord. No. 516, § 3, 8-11-2010)

Sec. 4-33. Reserved.

Sec. 4-34. Removal of dog feces.

(a) *Removal from public property.* Any owner having custody of any dog shall not permit the dog on any public place or property, including public streets, alleys, sidewalks, parks or any other public grounds within the city, unless the owner has in his or her possession a mechanical or other device for the removal of excrement; nor shall such owner fail to expeditiously remove any such excrement deposited by the dog in any such public place or property.

(b) *Removal from private property.* Any owner having custody of any dog shall not knowingly permit the dog on any private property other than the premises of the owner unless such owner has in his or her possession a mechanical or other device for the removal of excrement; nor shall such owner fail to expeditiously remove any such excrement deposited by such dog in any such place.

(c) *Forfeiture.* Any person found in violation of this section shall be subject to a forfeiture as set forth in subsection 4-32(c) of this article II.

(d) *Mechanical or other device.* "Mechanical or other device," for purposes of this section, shall include, without limitation, a pooper scooper, trowel, shovel, plastic bag or any other appropriate container.

(e) *Proper disposal.* Any such owner who has removed such excrement pursuant to this section shall properly discard such excrement in a lawful and sanitary manner in a designated waste receptacle or other suitable refuse container that is regularly emptied on a periodic basis.
(Ord. No. 516, § 4, 8-11-2010)

Sec. 4-35. Authority.

(a) The police chief or his designee, including a dog or animal control officer, health officer or any law enforcement officer, shall have the authority to enforce this chapter 4, including the issuance of notices of forfeiture (citations) and the investigation of all reports relating to issues of animal control.

(b) No person shall hinder or interfere with any dog or animal control officer, health officer or any law enforcement officer or such other person as may be appointed as agents of the city in the performance of any duty under this chapter 4. Any person in violation of this section shall be prosecuted under RSA 642:1, pertaining to obstruction of governmental administration.
(Ord. No. 516, § 5, 8-11-2010)

ARTICLE III. CATS

Sec. 4-36. Definitions.

[The following term, when used in this article, shall have the meaning ascribed to it in this section, except where context clearly indicates a different meaning:]

Cat shall mean any domestic feline animal, male or female, sexed or neutered.
(Ord. No. 362, 10-12-94)

Sec. 4-37. Impoundment.

(a) Any cat displaying symptoms which indicate a likelihood that such cat is afflicted with rabies shall be restrained or impounded by the animal control officer, under the direction of the health officer or by any law enforcement officer. Any animal so impounded shall be confined in a suitable animal shelter. Impounded cats not claimed by the owner or custodian within seven (7) days after notice to the owner or custodian, or stray cats where the owner or custodian is unknown, may be humanely disposed of by the animal control officer or by the responsible authorities of the animal shelter.

(b) Any apparently healthy cat whose rabies vaccination status is unknown and who is not wearing a valid rabies vaccination tag shall be impounded for a period of not less than seven (7) days in accordance with RSA 436 (Rabies Control Act) before being returned to the owner or custodian or before disposal.

(c) The owner of any impounded cat shall be responsible to the city for the payment of all charges incurred in the impounding of any cat, including, but not limited to, payment for boarding of the cat. Such payment shall be made to the city treasurer when such office is open to the public and at such other times to the police officer on duty at the police station. If payment is made at the police station, the police chief shall forthwith transmit the payment and a copy of the receipt to the city treasurer.
(Ord. No. 362, 10-12-94)

Sec. 4-38. Animal shelter operation agent for the city.

The owner of any hospital or shelter whose services in retaining a cat are utilized in the carrying out of the provisions of this article is made an agent of the city for returning and disposing of such cats, and his actions in this regard are deemed to be for a governmental purpose.
(Ord. No. 362, 10-12-94)

Sec. 4-39. Issuance of complaints.

It shall be the duty of the animal control officer, under the direction of the health officer, or any law enforcement officer, to

issue a complaint against the owner or keeper of a cat which has previously been impounded for failure to wear a valid rabies vaccination tag.

- (1) *Enforcement.* It shall be the duty of the animal control officer, under the direction of the health officer, or any law enforcement officer, to issue a complaint against the owner or keeper for any violation of section 4-2 of this chapter.
- (2) *Penalty.* Any person who fails to comply with the provisions of this section shall be guilty of a violation, if a natural person, or guilty of a misdemeanor if any other person.

(Ord. No. 362, 10-12-94)

